

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Kenneth L. Shapero
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113

Re: Morales, Eladio Cortez
CDC No.: F87852
Case No.: FF513517
Date of Sentence: September 10, 2007

Dear Honorable Kenneth L. Shapero:

The purpose of this letter is to provide the court with authority to resentence Eladio Cortez Morales pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Morales was sentenced in 2007, and was convicted of section 245, subdivision (a)(1), Assault with A Deadly Weapon. The trial court sentenced inmate Morales on September 10, 2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Morales's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Morales's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Private Attorney

F87852

F87852

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
 [NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

9/27/07 *[Signature]*

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SANTA CLARA - HALL OF JUSTICE		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Eladio Cortez Morales AKA: Eladio Morales Cortez CII#: A27005066 BOOKING #: 05066100 PFN: DVW920	DOB: 05-08-88 ☐ NOT PRESENT	FF513517 -A -B -C -D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT ☐ AMENDED ABSTRACT		
DATE OF HEARING 09-10-07	DEPT. NO. 91	JUDGE Kenneth L. Shapero
CLERK J. Baeten	REPORTER B. Musgrave	PROBATION NO. OR PROBATION OFFICER Allen ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE Carubba		COUNSEL FOR DEFENDANT R. Pointer ☐ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (see CR-290)	854 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3	PC	245(a)(1)	Assault with a deadly weapon	2005	07-13-07			X	M							3	0
4	PC	245(a)(1)	Assault with a deadly weapon	2005	07-13-07			X	M			X				1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
3	PC12022.7(a)	3	PC186.22(b)(1)(c)	10	PC12022.5(a)	4			17 0
4	PC12022.5(a)	1yr 4 mos							1 4

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
PC186.22(b)(1)	**S							

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. Ordered to report to Local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 22 4

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 22 4

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Eladio Cortez Morales			
FF513517	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$8,800	per PC 1202.4(b) forthwith per PC 2085.5;	\$8,800	per PC 1202.45 suspended unless parole is revoked.
Case B: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.
Case C: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.
Case D: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$GEN	☒ Amount to be determined by court to ☐ victim(s)* ☐ Restitution Fund
Case B: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

(*List victim name(s) if known and amount breakdown in item 11, below.)

c. Fine(s):

Case A: \$ + PA	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case B: \$ + PA	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case C: \$ + PA	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case D: \$ + PA	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$ + PA	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 + PA	per HS 11372.7(a).
Case B: Lab Fee: \$ + PA	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 + PA	per HS 11372.7(a).
Case C: Lab Fee: \$ + PA	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 + PA	per HS 11372.7(a).
Case D: Lab Fee: \$ + PA	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 + PA	per HS 11372.7(a).

e. Court Security Fee: A - Swaved B - \$ C - \$ D - \$

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☒ Compliance with PC296 verified d. ☐ other (specify):

11. Other orders (specify):

Cnts 1 & 2 dismissed. Register PC186.30 & PC186.32. PC12021 ordered for life. Probation denied. **Stricken pur PC186.22(g). Advised of 3 yrs parole.

12. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	761	662	99 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4018 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
		DMH	CDC CRC
		[]	[] []

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Juli Maggio

09-12-07